

Smt. Lata Devi v. State of U.P. and others

High Court of Judicature at Allahabad · Division Bench · 18 July 2024 · 2024:AHC:114578-DB · WRIT - C No. - 21783 of 2024 · **Writ disposed; Clause 6.5 objection on 50% deposit; connection restored meantime.**

HEADNOTE

A Division Bench disposed of a writ seeking quashing of an electricity recovery certificate by directing the authority to decide the consumer's pending application as a Clause 6.5 objection under the Electricity Supply Code, 2005, within the stipulated time, if 50% of the disputed amount is deposited within a week; on that deposit the connection is restored subject to the Clause 6.5 decision.

FACTUAL SUMMARY

Smt. Lata Devi sought quashing of a recovery certificate dated 9 February 2024 for electricity dues and a direction to the third respondent to decide her application (dated 1 January 2024 in the prayer and 1 April 2024 in the operative order). Counsel for the Electricity Department submitted that she could approach the authority under Clause 6.5 of the Electricity Supply Code, 2005. An earlier listing on 10 July 2024 had been adjourned as none appeared.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing objection

HOLDING

The writ is disposed by directing respondent no. 3 to decide the petitioner's application dated 1 April 2024 treating it as filed under Clause 6.5 of the Electricity Supply Code, 2005, within the time stipulated therein, provided she deposits 50% of the disputed amount within a week. On such deposit the electricity connection is to be restored subject to that decision. If the deposit is not made, the order is of no avail and the authority may proceed in accordance with law. The recovery certificate is not quashed on merits. ¶ 3-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE RECOVERY CERTIFICATE DATED 09.02.2024 AND THE QUANTUM OF ELECTRICITY DUES

Left to the Clause 6.5 authority; the recovery was not quashed on merits. ¶ 1,3